

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Filed: _____

DANISHA DAVIS,

INDEX NO. _____

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

-against-

S U M M O N S

P.O. BRENDEN LAVELLE (Shield #20337),
P.O. SHERRIANNE REINHARDT (Shield #20492), P.O.
ADRIAN THEOBALD (Shield #31670), P.O. "JOHN DOE,"
actual name unknown (Shield #27089), THE CITY OF NEW
YORK and NEW YORK CITY POLICE DEPARTMENT,

The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of
this summons is complete if this summons is not personally delivered to you within the State
of New York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
May 12, 2016

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10007

BRENDEN LAVELLE, (Shield #20337)
83 Precinct
480 Knickerbocker Avenue
Brooklyn, New York 11237

SHERRIANNE REINHARDT, (Shield #20492)
83rd Precinct
480 Knickerbocker Avenue
Brooklyn, New York 11237

ADRIAN THEOBALD, (Shield #31670)
83rd Precinct
480 Knickerbocker Avenue
Brooklyn, New York 11237

"JOHN DOE" (Shield #27089)
83rd Precinct
480 Knickerbocker Avenue
Brooklyn, New York 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DANISHA DAVIS,

Plaintiff,

-against-

P.O. BRENDEN LAVELLE (Shield #20337),
P.O. SHERRIANNE REINHARDT (Shield #20492), P.O.
ADRIAN THEOBALD (Shield #31670), P.O. "JOHN DOE,"
actual name unknown (Shield #27089), THE CITY OF NEW
YORK and NEW YORK CITY POLICE DEPARTMENT,

Defendants.

INDEX NO.

VERIFIED COMPLAINT

Plaintiff, by her attorneys, ASHER & ASSOCIATES, P.C., as and for her Verified
Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, DANISHA DAVIS, at all times herein mentioned was and still is a resident of the County of Kings, City and State of New York.
2. Defendant CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter "NYPD"), and as such is the public employer of the Defendant officers herein.
3. Defendant P.O. BRENDEN LAVELLE, Shield #20337 (hereinafter "LAVELLE") was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.
4. On or about February 16, 2015, the defendant POLICE OFFICER LAVELLE was assigned to the 83rd Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

5. Defendant P.O. SHERRIANNE REINHARDT, Shield #20492 (hereinafter "REINHARDT") was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.

6. On or about February 16, 2015, the defendant POLICE OFFICER REINHARDT was assigned to the 83rd Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

7. Defendant P.O. ADRIAN THEOBALD, Shield #31670 (hereinafter "THEOBALD") was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant, and/or employee of Defendant CITY and within the scope of his employment.

8. On or about February 16, 2015, the defendant POLICE OFFICER THEOBALD was assigned to the 83rd Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

9. Defendant POLICE OFFICER "JOHN/DOE", Shield ##27089 (hereinafter "DOE") was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant and/or employee of Defendant CITY and within the scope of his employment..

10. On or about February 16, 2015, the defendant POLICE OFFICER DOE was assigned to the 83rd Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

11. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times

hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

12. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

13. At all relevant times, the defendant NEW YORK was responsible for the training of its police officers, and more particularly, the individually named defendants LAVELLE (Shield #4574), REINHARDT (Shield #20492), THEOBALD (Shield #31670), and DOE (Shield #27089).

14. In the early morning hours of February 16, 2015, the plaintiff DANISHA DAVIS was attempting to pay the fare for a livery cab ride with a one hundred dollar bill when the cab driver took her from her home to the 83rd Precinct, 480 Knickerbocker Avenue, Brooklyn, NY.

15. Outside the precinct, two police officers, REINHARDT and THEOBALD had plaintiff exit the motor vehicle.

16. As she was explaining to them what happened, REINHARDT pushed plaintiff against a gate causing plaintiff's foot to get stuck in the gate.

17. Thereafter, both officers pushed plaintiff onto the floor, other officers, including the individually named LAVELLE and DOE, arrived and all the officers were on top of the plaintiff striking her about the head, face and body.

18. She was then dragged into the precinct and again thrown onto the floor.

19. Plaintiff passed out for approximately 20 minutes and when she came to, despite her complaints of pain, there was an officer sitting on her right leg.

20. Plaintiff was not taken to the hospital until approximately 7 hours later when she was transported by ambulance to Woodhull Hospital where she was diagnosed with a fracture of the shaft of fibula with tibia and a closed head injury.

21. On February 16, 2015 at the aforementioned location, the plaintiff was subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendants herein.

22. On February 16, 2015, the plaintiff, DANISHA DAVIS was handcuffed and forcibly detained by multiple members of the NYPD, including the individually named defendants herein.

23. On February 16, 2015, multiple members of the NYPD, including the individually named defendants herein refused to allow the plaintiff DANISHA DAVIS to be transported by ambulance to the hospital, but instead detained her for several hours in the 83rd Precinct.

24. On February 16, 2015, the plaintiff DANISHA DAVIS was arrested for theft of services, resisting arrest and disorderly conduct. All charges were dismissed in January 2016.

25. Based upon information and belief, the officers, including the individually named defendants LAVELLE, THEOBALD, REINHARDT and DOE possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

26. On February 16, 2015, plaintiff DANISHA DAVIS was caused to suffer severe personal injuries.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS

Pursuant to § 1983 (FALSE ARREST)

27. Paragraphs 1 through 26 of this complaint are hereby realleged and incorporated by reference herein.

28. That Defendants had neither valid evidence for the arrest of DANISHA DAVIS nor legal cause or excuse to seize and detain him.

29. That in detaining DANISHA DAVIS and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY, via their agents, servants and employees routinely charged persons with crimes they did not commit. DANISHA DAVIS was but one of those persons.

30. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

31. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

32. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of DANISHA DAVIS's rights alleged herein.

33. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of DANISHA DAVIS's rights, subjected DANISHA DAVIS to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

34. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of DANISHA DAVIS's civil rights, including but not limited to the right to be free from being falsely arrested.

35. By reason of the foregoing, DANISHA DAVIS suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS
Pursuant to State Law (FALSE ARREST)

36. Paragraphs 1 through 35 are hereby realleged and incorporated by reference herein.

37. That the seizure, detention and imprisonment of DANISHA DAVIS was unlawful in that Defendants had no probable cause to detain, arrest and/or imprison him.

38. That Defendants intended to confine DANISHA DAVIS.

39. That DANISHA DAVIS was conscious of the confinement and did not consent to it.

40. That the confinement was not otherwise privileged.

41. By reason of Defendants acts and omissions, Defendants, acting in gross and wanton disregard of DANISHA DAVIS's rights, deprived him of his liberty when they subjected him to an unlawful, illegal and excessive detention, in violation of State law.

42. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of DANISHA DAVIS's civil rights, including but not limited to the right to be free from false arrest.

43. That by reason of the foregoing, DANISHA DAVIS suffered physical injuries, mental injuries, economic injury, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS
Pursuant to §1983 (EXCESSIVE FORCE)

44. Paragraphs 1 through 43 are hereby realleged and incorporated by reference herein.

45. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

46. That Defendants had no legal cause or reason to use excessive force in effectuating DANISHA DAVIS's arrest or after DANISHA DAVIS was arrested and in custody.

47. That Defendants violated DANISHA DAVIS's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.

48. That at the time of the arrest or while in custody, DANISHA DAVIS did not pose a threat to the safety of the arresting officers.

49. That DANISHA DAVIS was not actively resisting arrest or attempting to evade arrest.

50. That Defendant CITY, through its officers, agents, and employees, unlawfully subjected DANISHA DAVIS to excessive force while effectuating his arrest.

51. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

52. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of DANISHA DAVIS's rights, subjected DANISHA DAVIS to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

53. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of DANISHA DAVIS's civil rights, including but not limited to the right to be free from the application of excessive force.

54. That upon information and belief, in 2015, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

55. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

56. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

57. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of DANISHA DAVIS's rights alleged herein.

58. By reason of the foregoing, DANISHA DAVIS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

59. The aforementioned use of excessive force in effectuating the wrongful arrest and detention of the plaintiff by LAVELLE, REINHARDT, THEOBALD and DOE violated the plaintiff's constitutional rights.

60. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

61. Each and all of the acts of the defendants were done by the defendants, each of

them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of the Bronx, and under the authority of their office as police officers for such city and county.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS

Pursuant to State Law (EXCESSIVE FORCE)

62. Paragraphs 1 through 61 are hereby realleged and incorporated by reference herein.

63. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure.

64. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

65. That Defendants had no legal cause or reason to use excessive force in effectuating DANISHA DAVIS's arrest or after DANISHA DAVIS was arrested and in custody.

66. That at the time of the arrest, DANISHA DAVIS did not pose a threat to the safety of the arresting officers.

67. That DANISHA DAVIS was not actively resisting arrest or attempting to evade arrest.

68. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

69. That by reason of Defendants acts and omissions, Defendants, acting under color of state law and within the scope of their authority, in gross and wanton disregard of

DANISHA DAVIS's rights, subjected DANISHA DAVIS to excessive force while effectuating his arrest, in violation of the laws of the State of New York.

70. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of DANISHA DAVIS's civil rights, including but not limited to the right to be free from the application of excessive force.

71. By reason of the foregoing, DANISHA DAVIS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS
Pursuant to § 1983 (MALICIOUS PROSECUTION)

72. Paragraphs 1 through 71 are hereby realleged and incorporated by reference herein.

73. That Defendants, with malicious intent, arrested DANISHA DAVIS and initiated a criminal proceeding despite the knowledge that DANISHA DAVIS had committed no crime.

74. That all charges against DANISHA DAVIS were terminated in his favor.

75. That there was no probable cause for the arrest and criminal proceeding.

76. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of DANISHA DAVIS's rights, deprived DANISHA DAVIS of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation

of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

77. That upon information and belief, Defendants had a policy and /or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, DANISHA DAVIS was maliciously prosecuted despite the fact that he had committed no violation of the law.

78. That upon information and belief it was the policy and /or custom of defendant CITY to inadequately hire, train, supervise, discipline and /or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

79. That as a result of the above described policies and customs, defendant CITY, its staff, agents and employees of defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

80. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of DANISHA DAVIS's rights alleged herein.

81. That in so acting, Defendant CITY abused its power and authority as policymaker of the NYPD under the color of State and/or local law.

82. That upon information and belief, in 2014, Defendant CITY had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

83. That by reason of the foregoing, DANISHA DAVIS suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorneys' fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS
Pursuant to State Law (MALICIOUS PROSECUTION)

84. Paragraphs 1 through 83 are hereby realleged and incorporated by reference herein.

85. That Defendants acted with malicious intent, arrested DANISHA DAVIS and initiated a criminal proceeding despite the knowledge that DANISHA DAVIS had committed no crime.

86. That charges against DANISHA DAVIS were dismissed.

87. That there was no probable cause for the arrest and criminal proceeding.

88. That by reason of Defendants acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of DANISHA DAVIS's rights, deprived DANISHA DAVIS of his liberty when they maliciously prosecuted him in violation of the Laws of the State of New York.

89. That by reason of the foregoing, DANISHA DAVIS suffered physical and psychological injuries, traumatic stress, post traumatic stress disorder, mental anguish,

economic damages including attorneys fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS

Pursuant to §1983 (EXCESSIVE PRE-ARRAIGNMENT DETENTION)

90. Paragraphs 1 through 89 are hereby realleged and incorporated by reference herein.

91. That Defendants had no legal cause nor excuse to detain DANISHA DAVIS for a prolonged period prior to arraignment.

92. That Defendants detained DANISHA DAVIS excessively prior to arraignment in violation of DANISHA DAVIS's civil rights.

93. That Defendants detained DANISHA DAVIS with ill will and/or negligently.

94. That Defendants should have expeditiously investigated this matter and released DANISHA DAVIS.

95. By reason of Defendant's acts and omissions, Defendants, acting under color of state law and within the scope of its authority, in gross and wanton disregard of DANISHA DAVIS's rights, deprived DANISHA DAVIS of his liberty when it subjected him to an unlawful, illegal and excessive detention, in violation of his due process rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

96. That in so acting, Defendant CITY, abused its power and authority as policymaker of the New York City Police Department under the color of State and/or local law.

97. That upon information and belief, in 2010, Defendant CITY had a policy or routine practice of detaining and imprisoning individuals for excessive periods prior to arraignment.

98. That upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately train and supervise their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

99. That as a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

100. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant NYPD to the constitutional rights of arrestees and were the cause of the violations of DANISHA DAVIS's rights alleged herein.

101. That Defendant, through its officers, agents and employees, unlawfully incarcerated DANISHA DAVIS for an excessive period of time prior to arraignment.

102. By reason of the foregoing, DANISHA DAVIS suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS

Pursuant to State Law (PRE-ARRAIGNMENT DELAY)

103. Paragraphs 1 through 102 are hereby realleged and incorporated by reference herein.

104. Defendants negligently and/or intentionally failed to arraign plaintiff promptly following his arrest as required by New York State and Federal laws, rules, regulations and statutes.

105. Said failure to promptly arraign plaintiff caused his arrest to be void ab initio.

106. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer personal injuries, violation of civil rights, economic damages, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS
Pursuant to § 1983 (Denial of Medical Treatment)

107. Paragraphs 1 through 106 are hereby realleged and incorporated by reference herein.

108. That the injuries Plaintiff suffered as a result of Defendants' assault amounted to a serious medical condition.

109. That untreated, Plaintiff's injuries amounted to a substantial risk of serious harm.

110. That Plaintiff requested medical treatment for her injuries.

111. That Defendants refused to provide medical treatment.

112. That the denial of medical care resulted in a substantial risk of serious harm to Plaintiff.

113. That Defendants acted with reckless disregard for the substantial risk.

114. That Defendants denied Plaintiff access to medical care because of a deliberate indifference to the medical need.

115. That by reason of the foregoing, DANISHA DAVIS suffered physical and psychological injuries, traumatic stress, mental anguish, economic damages including attorneys fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS
Pursuant to State Law (Assault and Battery)

116. Paragraphs 1 through 115 are hereby realleged and incorporated by reference herein.

117. That Defendants intended to cause harmful bodily contact to DANISHA DAVIS.

118. That Defendants, in a hostile manner, voluntarily caused DANISHA DAVIS'S injuries.

119. That Defendants' contact with DANISHA DAVIS constituted a battery in violation of the laws of the State of New York.

120. That by reason of the foregoing, DANISHA DAVIS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror,

damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS

Pursuant to State Law (Negligence)

121. Paragraphs 1 through 120 are hereby realleged and incorporated by reference herein.

122. That Defendants were reckless, careless, and indifferent to DANISHA DAVIS's physical well-being while DANISHA DAVIS was in Defendants' custody.

123. That Defendants had a duty to exercise reasonable care to secure the safety of DANISHA DAVIS from injury while in Defendants' charge.

124. That Defendants breached their duty to DANISHA DAVIS when Defendants failed to exercise reasonable care to secure the safety of DANISHA DAVIS while in Defendants' charge, or when Defendants discontinued their aid or protection of DANISHA DAVIS and left DANISHA DAVIS in a worse position than when Defendants took charge of him.

125. That by the actions described above, defendants jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff.

126. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

127. As a result of the foregoing, DANISHA DAVIS was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great

humiliation, costs and expenses, and was otherwise damaged and injured. All of said injuries may be permanent.

AS AND FOR A TWELFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DANISHA DAVIS

Pursuant to State Law (RESPONDEAT SUPERIOR)

128. Paragraphs 1 through 127 are hereby realleged and incorporated by reference herein.

129. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.

130. That at all times Defendants were acting within the scope of their employment.

131. That Defendant CITY was able to exercise control over Defendants activities.

132. That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior. By reason of the foregoing, DANISHA DAVIS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

133. As a result of the acts and conduct complained of herein, DANISHA DAVIS has suffered and will continue to suffer, physical pain, emotional pain, suffering, permanent disability, inconvenience, injury to his reputation, loss of enjoyment of life, loss of liberty and other non-pecuniary losses. Plaintiff has further experienced severe emotional and physical distress.

WHEREFORE, DANISHA DAVIS respectfully requests that judgment be entered:

1. Awarding DANISHA DAVIS compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding DANISHA DAVIS punitive damages in an amount to be determined by a jury;
3. Awarding DANISHA DAVIS interest from February 16, 2015 and
4. Awarding DANISHA DAVIS reasonable attorney's fees pursuant to 42 USC §1988; and
5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York
May 12, 2016


By: ~~Roberta D. Asher~~
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiff
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO.

DANISHA DAVIS,

Plaintiff,

-against-

**ATTORNEY'S
VERIFICATION**

P.O. BRENDEN LAVELLE (Shield #20337),
P.O. SHERRIANNE REINHARDT (Shield #20492), P.O.
ADRIAN THEOBALD (Shield #31670), P.O. "JOHN DOE,"
actual name unknown (Shield #27089), THE CITY OF NEW
YORK and NEW YORK CITY POLICE DEPARTMENT,

Defendants.

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

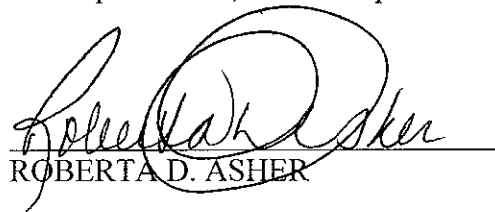
I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and
belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because she is not in the
County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's
knowledge are correspondence had with the said plaintiff, information contained in the said
plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
May 12, 2016


ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DANISHA DAVIS,

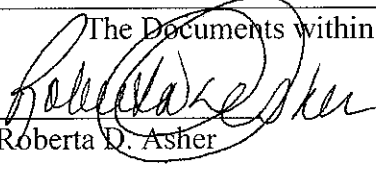
Plaintiff,

-against-

P.O. BRENDEN LAVELLE (Shield #20337), P.O. SHERRIANNE REINHARDT (Shield #20492), P.O. ADRIAN THEOBALD (Shield #31670), P.O. "JOHN DOE," actual name unknown (Shield #27089), THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT,

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:
By 
Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Fourteenth Floor

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF

ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the within named Court on , 2016 .

NOTICE OF

SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the

of the within named Court, at , New York, on , 2016 , at 9:30
A.M.

Dated: